

HyperFluro End User License Agreement (EULA)

THIS LICENSE AGREEMENT (Last Updated: 03 Feb 2026)

(“Agreement”) is entered into between Keiko Osaka Limited, a company incorporated in England and Wales and trading as HyperFluro, which owns or controls the HyperFluro brand and related font software (“Licensor”), and [Licensee name] (“Licensee”). Licensor and Licensee may each be referred to as a “Party” and collectively as the “Parties”.

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➤ (1) GRANT OF LICENSE

Subject to full payment of the applicable licence fee and continued compliance with this Agreement, Licensor grants Licensee a limited, non-exclusive, non-transferable, non-sublicensable licence to install and use the licensed font software on one (1) device or for one (1) named user. The Standard Licence permits use of the font software only for desktop design and static, non-editable graphics for Licensee or a single client, up to the number of users/devices purchased. Any broader, different, or higher-value use than expressly permitted here is not covered by the Standard Licence and requires purchase of an additional or Special Font Licence as described in this Agreement.

➤ (2) **LICENSE EXTENSIONS**

Additional Multi-User Licences and “Special Licences” may be purchased within three (3) years of the original purchase date, at Licensor’s then-current pricing. Any extension, upgrade, or additional licence is subject to this Agreement unless expressly stated otherwise in writing by Licensor.

➤ (3) **SPECIAL FONT LICENSING**

The following higher-value uses are not included in the Standard Licence and each requires a paid Special Font Licence from Licensor in advance of deployment. The Standard Licence does not permit any of the uses listed below. “Annual Gross Revenue” means the gross revenue of the brand owner entity that owns or controls the licensed brand, taken from its most recently completed financial year, as shown in its financial statements, before deduction of costs, taxes, or expenses.

Definitions: (i) “Brand” means the trade name, trademark, or other brand identity used by a company, organisation, or individual to market its products or services, and “brand owner” means the legal entity that owns or controls that Brand. (ii) “Annual Gross Revenue” means the gross revenue of the brand owner entity that owns or controls the licensed brand, taken from its most recently completed financial year, as shown in its financial statements, before deduction of costs, taxes, or expenses.

SPECIAL FONT LICENSES

(A) **WebFont Licence** (Monthly > \$5/month)

Grants rights to use the font on websites for a single brand, including @font-face, webfont services, and similar web embedding methods. Coverage applies to all pages on the licensed site(s) for the duration of the subscription. This license allows 50,000 page views per month. Exceeding this page-view threshold requires an upgraded webfont or enterprise arrangement.

➤ [Purchase WebFont License](#)

(B) Interactive Document Licence (Monthly › \$10/month)

Grants rights to use the font in an editable PDF, interactive forms, and similar interactive document formats for a single brand. Licensees may distribute these documents to end users without additional font licensing, provided the subscription remains active and end users cannot directly install or extract the font software.

➤ [Purchase Interactive Document License](#)

(C) Digital Publishing Licence (Monthly › \$15/month per title)

Grants rights to use the font in eBooks and other digital publications on a per-title or per-series basis. Licensees may distribute the digital title across major platforms and stores for as long as the subscription for that title remains active. Each new title or distinct series requires a separate licence.

➤ [Purchase Digital Publishing License](#)

(D) Print Publishing Licence (Monthly › \$20/month per title)

Grants rights to use the font in printed books and comparable long-form print publications on a per-title or per-series basis. This includes interior typesetting and cover design for all print runs of the licensed title while the subscription is active. Each new title or distinct series requires a separate licence.

➤ [Purchase Print Publishing License](#)

(E) Broadcast Streaming Licence (Monthly › \$25/month)

Grants rights to use the font in video, TV, film, broadcast, YouTube, streaming, and other audiovisual commercial content for a single brand or production. This covers on-screen titles, graphics, captions, and promotional materials related to the licensed production.

➤ [Purchase Broadcast Streaming License](#)

(F) Canva Design Tool License (Monthly › \$29/month)

Grants rights to upload and use the font within a single online design tool account (such as Canva or similar browser-based editors) operated by the Licensee, for the creation of designs for a single brand whose brand owner has up to \$55,000 Annual Gross Revenue, where the Licensee is either (A) an individual operating through a company, or (B) a sole trader. This licence permits use of the font within such tools only for creating flattened, non-editable outputs (for example, exported images or PDFs) and does not permit making the font available as editable live text, a system-wide font, or a selectable font option for other users of the platform. Any use of the font in connection with an online design tool that allows third parties to generate arbitrary new text with the font, or offers the font as part of the platform's general font library, requires an OEM Software Product Licence or a separate written agreement with Licensor.

➤ [Purchase Canva Design Tool License](#)

(G) Small Brand Identity Licence (Monthly › \$49/month)

Grants rights to use the font in primary brand logos, wordmarks, and core packaging design systems for a single brand whose brand owner has up to \$100,000 Annual Gross Revenue. Coverage includes all markets and channels for that brand while the subscription remains active.

➤ [Purchase Small Brand Identity License ›](#)

(H) Multi-User Agency Licence (Monthly › \$59/month per agency)

Grants rights for an agency or similar service provider to use the font across multiple client brands, up to the number of active clients specified at purchase. Individual end-clients do not need separate licences, provided their use falls within the agency's active subscription and this Agreement. The agency may temporarily provide the font software to printers, production houses, or client in-house teams solely for producing, adapting, or implementing projects created by the agency for the relevant brand(s) covered by its licence. The agency must ensure such third parties use the font software only for the agency's projects, do not keep copies for other work, and delete the font software when the project is completed. The agency is responsible for ensuring all client and third-party use complies with this EULA, including any Multi-User limits.

➤ [Purchase Multi-user Agency License](#)

(I) iOS & Google Play APP License (Monthly › \$79/month per)

Grants rights to use the font in the user interface of a single mobile or desktop application, including headings, labels, buttons, navigation elements, and other static or pre-rendered text elements within the app. This licence does not cover use of the font as the primary brand logo or app logo (which requires an appropriate Brand Identity Licence) and does not permit live, editable text rendering where end users can create arbitrary new text using the font. Any such live-text or dynamic embedding (including in-app editors, design tools, or templating systems) requires an OEM Software Product Licence. Coverage includes all platforms and operating systems for the licensed application while the subscription remains active.

➤ [Purchase APP License](#)

(J) Medium Brand Identity Licence (Monthly › \$149/month)

Grants rights to use the font in primary brand logos, wordmarks, and core packaging design systems for a single brand whose brand owner has up to \$1,000,000 Annual Gross Revenue. Coverage includes all markets and channels for that brand while the subscription remains active.

➤ [Purchase Medium Brand Identity License ›](#)

(K) OEM Software Product Licence (Monthly › \$499/month)

Grants rights to embed the font into hardware devices, software products, or other OEM/pre-installation scenarios, including live text rendering within user interfaces. This covers installable apps, device interfaces, bundled software, and any environment where the font is rendered dynamically from text rather than as static outlines, with pricing reflecting product scope and distribution scale.

➤ [Purchase OEM Software Product License ›](#)

(L) **Large Brand Identity Licence** (Monthly › \$499/month)

Grants rights to use the font in primary brand logos, wordmarks, and core packaging design systems for a single brand whose brand owner has up to \$10,000,000 Annual Gross Revenue. Coverage includes all markets and channels for that brand while the subscription remains active.

➤ [Purchase Large Brand Identity License ›](#)

(M) **Global Brand Identity Licence** (Monthly › \$999/month)

Grants rights to use the font in primary brand logos, wordmarks, and core packaging design systems for a single brand whose brand owner has up to \$100,000,000 Annual Gross Revenue. Coverage includes all regions and channels worldwide for that brand while the subscription remains active.

➤ [Purchase Global Brand Identity License ›](#)

(N) **Enterprise Licence** (Monthly › \$1,500/month)

Grants rights for global use of the font across a single top-level client entity, with no revenue cap and coverage across all brands, products, media, and channels controlled by that entity. This licence does not extend to separately incorporated subsidiaries or affiliates; such entities must obtain their own licence or be covered by a separate agreement.

➤ [Purchase Enterprise License ›](#)

(O) **Unlimited Global Fortune 500 Licence** (Monthly › \$2,499/month)

Grants rights for unrestricted global use of the font across a single Fortune 500-level client entity, with no revenue cap and coverage across all brands, sub-brands, products, media, regions, and channels, including subsidiaries and affiliates under common control. This tier is intended for the largest enterprise clients requiring group-wide standardisation of typography.

➤ [Purchase Unlimited Global Fortune 500 License ›](#)

Licensors may offer flexible terms, including unlimited-use and corporate licences covering agencies and subcontractors. Where a Special Font Licence is combined with a Multi-User Licence, the Multi-User Licence continues to govern the maximum number of permitted users/devices.

SPECIAL FONT LICENSING

A simplified table below is included for your reference. For exact scope, refer to the detailed licence descriptions in clauses (3.A) › (3.O), or contact us directly.

License	Monthly Subscription	Use this if you want to...	Not for...
*A WebFont	\$5	Use the font on a website (single brand, up to 50,000 page views/month)	Huge traffic sites without upgrading
*B Interactive Document	\$10	Use the font in editable PDFs, forms, etc. for one brand, with end users filling in fields	Letting others install or extract the font
*C Digital Publishing	\$15 / per title	Use the font in an eBook or digital publication (per title/series)	Multiple unrelated titles under one licence
*D Print Publishing	\$20 / per title	Use the font in printed books or long-form print (per title/series)	Unlimited titles under one licence
*E Broadcast Streaming	\$25	Use the font in video, TV, film, YouTube, streaming and promos for one brand/production	Multi-brand networks under a single small licence

*F Canva Design Tool	\$29	Upload the font to a Canva-type tool for one small brand ($\leq$ \$55k revenue) as flattened designs only	Making the font a general selectable option for others
*G Small Brand Identity	\$49	Use the font as a primary logo/identity for a brand with $\leq$ \$100k revenue	Bigger brands (use J/L/M/enterprise tiers)
*H Multi-User Agency	\$59	One agency using the font across several client brands under one subscription	Giving clients a general independent licence
*I App Interface	\$79	Use the font in UI of one app (buttons, labels, etc.), no live editable text	In-app editors/any live-text rendering
*J Medium Brand Identity	\$149	Logo/identity for a brand with $\leq$ \$1m revenue	Larger brands
*K OEM	\$499	Embed the font in software/devices/live text environments	Small one-off app or logo use
*L Large Brand Identity	\$499	Logo/identity for a brand with $\leq$ \$10m revenue	Global or Fortune-500-scale brands
*M Global Brand Identity	\$999	Logo/identity for a brand with $\leq$ \$100m revenue worldwide	Group-wide / conglomerate use

*N Enterprise	\$1,500	All brands & channels of one top-level entity, no revenue cap	Separate subsidiaries (need own or bespoke deal)
*O Unlimited Global Fortune 500 Companies	\$2,499	Group-wide use for a Fortune-500-scale group, all brands/subs	Smaller or mid-size companies

➤ (4) MULTI-USER LICENSES

“Price” means the then-current single-user licence fee for the relevant product and licence type at the time of purchase. Multi-user pricing is calculated using the following multiplier based on the number of devices or users. Licensee must retain proof of purchase as evidence of licence scope.

Number of CPUs/Users	Multiplier
1 (User)	price x1
2 > 5 (Users)	price x2
6 > 15 (Users)	price x3
16 > 30 (Users)	price x4
31 > 45 (Users)	price x5
46 > 65 (Users)	price x6
66 > 80 (Users)	price x7
81 > 95 (Users)	price x8
96 > 99 (Users)	price x9
100 > 249 (Users)	price x15

250 > 499 (Users)	price x30
500 > 1,000 (Users)	price x50
1,000+	p.o.a.

If at any time the number of users/devices increases beyond the scope purchased, Licensee must immediately upgrade to the appropriate Multi-User Licence tier and pay the additional fee. Failure to upgrade constitutes unauthorised use and a material breach of this Agreement. To purchase or upgrade a Multi-User Licence, Licensee must contact Licensor directly for assistance.

➤ (5) **INTELLECTUAL PROPERTY OWNERSHIP**

All rights, title, and interest in and to the font software, including all copies, modifications, derivative works, any underlying typeface designs to the extent protected by applicable law, the font software code, and any related documentation, are and shall remain owned exclusively by Licensor (Keiko Osaka Limited trading as HyperFluro). Licensee acquires only a licence to use the font software in accordance with this Agreement and does not acquire any ownership, authorship, or development rights. The font software is protected by copyright and other intellectual property laws and international treaties. Licensor represents that it is the owner of, or otherwise has the right to license, all copyrights and other intellectual property rights in the Licensed Works. Any future assignment or transfer of such rights by Licensor will be subject to this EULA and will not adversely affect the rights validly granted to Licensee hereunder.

➤ (6) **CUSTOM PROJECTS AND MODIFICATIONS**

If Licensee or its clients require any modification, adaptation, or further development of the font software or its design for commercial use, a separate written custom licence with Licensor is required. All development, modification, and derivative rights in and to the font software remain exclusively reserved to Licensor. Licensee must contact Licensor for a quotation before commencing any such work.

➤ (7) **COPY RESTRICTIONS**

Licensee may create reasonable backup copies solely for archival or backup purposes, provided such copies remain in Licensee's possession, are used only in connection with authorised devices/users under this Agreement, and retain all copyright, trademark, and proprietary notices.

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➤ (8) **PERMITTED USES AND PROHIBITED ACTS**

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(8.3) create derivative works, edits, or modifications of the font software without a separate written licence from Licensor;

(8.4) use the font software in any way not expressly authorised by the scope of the licence purchased (Standard, Multi-User, or Special Font Licence).

Any unauthorised use or breach of this clause gives Licensor the right to terminate this Agreement and the licence granted hereunder with immediate effect, without prejudice to any other rights or remedies Licensor may have.

➤ (9) **EMBEDDING RESTRICTIONS**

Standard embedding of the font software into static, read-only PDF documents solely for viewing and printing is permitted under the Standard Licence.

Embedding in editable PDFs, applications, websites, or any environment that permits end users to access, extract, edit, or generate new text using the font requires a Special Font Licence from Licensor, obtained in advance of deployment.

➤ (10) **UPGRADES AND ADDITIONAL LICENCES**

Licensee acknowledges that the licence fee paid reflects only the specific scope selected at checkout (users/devices and permitted uses). If Licensee's use expands (for example, increased

headcount, additional brands/clients, web or app deployment, broadcast campaigns, or branding use), Licensee must purchase an appropriate additional or Special Font Licence in advance.

Current licence options and pricing are available in this document in section “(3) SPECIAL FONT LICENSING” as outlined above. If Licensee has any questions, Licensee must contact Licensor directly. Licensor may, at its discretion, offer discounted upgrade pricing for existing customers who wish to expand usage.

➤ (11) **LIMITED WARRANTY**

Licensor warrants that, for thirty (30) days from the date of purchase, the font software will substantially conform to any written description provided by Licensor and that the media or initial download provided by Licensor will be free from material defects.

Licensor’s sole obligation and Licensee’s exclusive remedy for any breach of this warranty shall be, at Licensor’s option, repair, replacement, or refund of the licence fee paid upon proof of purchase. Licensor does not warrant compatibility with any particular hardware, software, operating system, or workflow.

➤ (12) **DISCLAIMER OF WARRANTIES**

EXCEPT FOR THE LIMITED WARRANTY IN CLAUSE (11), THE FONT SOFTWARE IS PROVIDED “AS IS” AND “AS AVAILABLE”, WITHOUT ANY OTHER WARRANTIES, REPRESENTATIONS, OR CONDITIONS OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

➤ (13) **LIMITATION OF LIABILITY**

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, LICENSOR SHALL NOT BE LIABLE FOR ANY INDIRECT, CONSEQUENTIAL, SPECIAL, INCIDENTAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, BUSINESS, DATA, OR GOODWILL, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT OR THE USE OR INABILITY TO USE THE FONT SOFTWARE, EVEN IF LICENSOR HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

LICENSOR'S TOTAL AGGREGATE LIABILITY UNDER OR IN CONNECTION WITH THIS AGREEMENT SHALL NOT EXCEED THE AMOUNT ACTUALLY PAID BY LICENSEE FOR THE RELEVANT LICENCE.

➤ **(14) UPDATES**

Licensor may, at its discretion, make updates or new versions of the font software available.

Unless otherwise stated in writing, any updates provided to Licensee will be deemed to form part of the font software and will be subject to this Agreement.

➤ **(15) TERMINATION**

This Agreement and the licence granted herein will terminate automatically without notice if Licensee commits a material breach of any term of this Agreement that is not remedied (if remediable) within a reasonable time after notice. Upon termination, Licensee must immediately cease all use of the font software, delete all copies from all devices and storage media, and, upon request, provide written confirmation to Licensor that such deletion has been completed.

➤ **(16) GENERAL RESTRICTIONS ON TRANSFER**

Licensee may not assign, transfer, re-export, or otherwise dispose of the font software or any rights under this Agreement, whether voluntarily, by operation of law, or otherwise, without Licensor's prior written consent in the form of a signed contract.

Licensee must ensure that all persons within its organisation who use the font software are made aware of and comply with this Agreement.

➤ **(17) LICENSOR ASSIGNMENT**

Licensor may assign or transfer its rights in the Licensed Works or this Agreement to any third party without the consent of Licensee, provided that any such assignee assumes Licensor's obligations under this EULA. Any such assignment shall not affect the validity of licences granted to Licensee in accordance with this Agreement.

➤ **(18) SEVERABILITY**

If any provision of this Agreement is held to be invalid, illegal, or unenforceable by a court of

competent jurisdiction, that provision shall be enforced to the maximum extent permissible, and the remaining provisions shall remain in full force and effect.

➤ (19) **WAIVER**

No failure or delay by Licensor to exercise any right or remedy under this Agreement shall operate as a waiver of that or any other right or remedy, nor shall any single or partial exercise of any such right or remedy preclude any other or further exercise of that or any other right or remedy.

➤ (20) **ENTIRE AGREEMENT**

This Agreement constitutes the entire agreement between Licensor and Licensee with respect to the font software and supersedes all prior or contemporaneous understandings, communications, or agreements, whether written or oral, relating to its subject matter.

Any modification must be in writing and expressly agreed by the Licensor.

➤ (21) **UK & USA COPYRIGHT**

The Licensor is and remains the sole owner of all copyright and other intellectual property rights in the Licensed Works under the laws of England and Wales and under the laws of the United States of America. The Licensed Works include all software, fonts, and related materials supplied under this EULA, together with all associated copyrights (including any U.S. copyright registrations held by the Licensor) and other intellectual property rights subsisting worldwide. Nothing in this EULA transfers ownership of any such rights to the Licensee; only a limited licence is granted on the terms set out in this Agreement.

➤ (22) **GOVERNING LAW AND JURISDICTION**

This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by and construed in accordance with the laws of England and Wales. The courts of England and Wales shall have exclusive jurisdiction to settle any dispute arising out of or in connection with this Agreement, without prejudice to Licensor's right to seek injunctive or equitable relief in any jurisdiction.

➤ (23) **CONTACT INFORMATION**

The primary contact address for Licensor under this Agreement is:

Email: alexhaigh333@gmail.com

Licensors may also be contacted for general support via:

WhatsApp Business: +44(0)7858530898 (not for formal notices).

Licensors may update its contact details for this Agreement by notifying Licensee via the website on which the font was purchased or by email; any such updated details will take effect from the date specified in the notice.

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